

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kaitlin Campbell	Team: Squad #13	CCRB Case #: 201800562	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 01/15/2018 11:24 AM	Location of Incident: 14th Street and 31st Avenue	Precinct: 114	18 Mo. SOL 7/15/2019	EO SOL 7/15/2019	
Date/Time CV Reported Mon, 01/15/2018 12:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/22/2018 11:04 AM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Ruibing Lin	31107	952998	114 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Kaitlin Wallace	21615	960067	114 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A.POM Ruibing Lin	Discourtesy: Police Officer Ruibing Lin acted discourteously toward § 87(2)(b)				

Case Summary

On January 15, 2018, at approximately 12:05 p.m., § 87(2)(b) called the NYPD Internal Affairs Bureau and filed this complaint

On January 15, 2018, at approximately 11:24 a.m., § 87(2)(b) was driving, alone, southbound on 14th Street in Queens. After he passed through the intersection of 14th Street and 31st Avenue, Police Officers Ruibing Lin and Kaitlin Wallace of the 114th Precinct pulled § 87(2)(b) over. PO Lin issued § 87(2)(b) a summons for § 87(2)(b). PO Lin threw the summons at § 87(2)(b) (Allegation A: Discourtesy, § 87(2)(g))

There is no video footage of this incident.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Ruibing Lin acted discourteously toward § 87(2)(b)

It is undisputed that § 87(2)(b) expressed anger at PO Lin that he was stopped, that § 87(2)(b) initially refused to give PO Lin his license and registration, and that § 87(2)(b) demanded PO Lin tell him why he was pulled over. It is undisputed that PO Lin raised his voice in asking § 87(2)(b) for his license and registration again, that PO Lin told § 87(2)(b) he was stopped for disobeying a stop sign, and that § 87(2)(b) contested this but gave PO Lin his license and registration. § 87(2)(g)

In his phone statement, § 87(2)(b) said PO Lin threw the ticket in his face. In his in-person statement, § 87(2)(b) said he put his hand out of the window to take the ticket from PO Lin, and that PO Lin threw the ticket into the car and that it landed between the center console of the car and the driver seat.

PO Lin and PO Wallace said that PO Lin reached into the car and placed the summons on his lap. PO Wallace described this as PO Lin reaching his hand into the open driver window, lowering the summons, license, and registration, and letting go of the summons, license, and registration about a centimeter above § 87(2)(b)'s lap. PO Lin denied throwing the summons. PO Wallace said she did not see PO Lin throw the summons, and both officers said they did not see § 87(2)(b) hold his hand out to receive the summons.

Patrol Guide Procedure 203-09 states that an officer should be courteous and respectful (Board Review 01).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Lin has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 22, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date